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Taylor–Red Wash logistics services agreement summary

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Record origin: SYNTHETIC_COMPANY_RECORD | **Evidence state:** SYNTHETIC_RECONSTRUCTED instrument and qualification summary

Decision state: LOCKED_DERIVED_IMPLEMENTATION commercial terms; OPEN_GATED direct uranium custody

This is the reconstructed internal agreement summary for the fictional companies. It is not an authentic executed contract, published common-carrier tariff, insurance binder or regulator approval. The schedules below supply concrete case terms; they do not attest that any real company issued them.

Parties, authority and term

American Resource Utility, Inc. provides terminal handling and trucking. Blood, Sweat & Tears Railway Company separately provides its rail service and retains railway operating command. Red Wash Mining, LLC is the receiving customer. ARU may administer consolidated billing as a disclosed agent, but each invoice identifies the actual rail, terminal or trucking seller and RWH buyer. Pale Sun owns RWH and sponsors the mine capital case; SHIH owns the industrial platforms. Neither owner becomes the carrier or custody holder merely by owning shares.

The five-year term begins **July 7, 2026** and ends **July 6, 2031**, absent earlier termination under these terms. Future term dates are contractual obligations, not realized service. The reconstructed authorization record has Nora accept ARU commercial/operating obligations, Seth accept railway operating obligations, and Mari accept RWH receiving obligations. Tessa confirms reciprocal invoices and separate asset books. Evan sponsors the platform case without replacing their operating sign-offs.

The agreement covers ordinary inbound acid, binder, lime, steel, process/MRO and separately qualified project freight. Aggregate is locally sourced and fuel initially arrives by truck. Finished uranium concentrate is excluded. No V1 mine spur, direct mine rail connection or automatic product-custody permission is created.

Schedule A — service and rates

The controlling rates and physical drivers are in [operations source](#). The following issue-date schedule repeats those rates for a reviewable instrument; a later source revision requires a documented contract amendment and reciprocal accounting update.

Commodity	Rail per car, BS&T	Terminal per car, ARU	Truck trips per car	ARU rate per truck trip	Combined per car
Sulfuric acid	\$950	\$700	4	\$340	\$3,010
Cement/binder	\$850	\$400	4	\$285	\$2,390
Lime	\$850	\$450	4	\$300	\$2,500
Steel	\$950	\$650	3	\$375	\$2,725
Process/MRO	\$750	\$500	2	\$325	\$1,900
Project freight, qualified standard case	\$1,400	\$1,400	2	\$900	\$4,600

The 225-slot planning allowance contains 205 ordinary commodity cars, ten project cars and ten unbilled contingency slots. Only 215 physical cars support normalized base revenue. The 300-slot design allowance is capacity, not an order. The full 2026 ramp is a separate 63-car forecast/calibration schedule. **There is no minimum volume guarantee, take-or-pay tonnage or exclusive-carrier covenant.** Unused slots produce no invoice. Red Wash may permanently choose qualified external service when ARU is uncompetitive, unavailable or unqualified; its traffic receives no preference that harms outside customers.

Origin-to-Wamsutter Class I linehaul remains separately arranged and paid by RWH. Published connecting-carrier terms, car hire and third-party demurrage are neither waived nor impersonated by this intercompany contract. The rail rate covers the modeled BS&T movement; the truck rate covers the complete loaded/empty cycle described in the operating cost model. A railcar is never priced as a single truckload when four legal road trips are required.

Rates include ordinary fuel, handling, records, qualified response and the allocated fixed standby/insurance/maintenance/compliance allowance. No automatic fuel surcharge or second fixed-fee invoice is modeled. Rates are reviewed each January against input indexes, documented cost-to-serve and available independent alternatives. An input-cost movement exceeding 10% triggers an earlier re-quote and comparison. Existing rates continue until a written prospective amendment is accepted; a cost increase cannot be silently backdated. Unusual projects outside the stated payload/time assumptions require a separate quote and operating approval before acceptance.

Schedule B — clock, free time and service remedies

Tuesday and Friday at 08:00 America/Denver are scheduled Taylor handling windows within the railway's ordinary five-day service. The default limit from interchange receipt to empty release is **72 elapsed hours**, with a **36–48-hour operating goal**; steel has **96 elapsed hours**. Acid and binder target 95% on-time service. UTC elapsed-time arithmetic governs daylight-saving transitions; weekends and clock changes do not disappear from the denominator.

Dispatch uses a weekday exception when the next scheduled window would miss the limit. Where that is insufficient, funded on-call handling begins within 24 elapsed hours, subject to qualified crews and safe movement. Required exception handling is included in the quoted rates and the existing **\$48,000 annual fixed allowance**; it creates no new guaranteed fee or hidden revenue. Safety or qualification failure requires a hold and prompt alternate-carrier arrangement, not an unsafe promise to meet a clock.

Free time is 72 elapsed hours from interchange receipt, or 96 for steel. After free time, **customer-caused** occupancy of provider-controlled storage may incur a derived **\$50 per car per 24 hours**, prorated hourly. Provider-caused delay earns no storage charge against RWH. This is a synthetic commercial occupancy rate, not an external railroad tariff or statutory amount; baseline finance assumes zero charge because it models no chargeable dwell event.

Each proposed demurrage/storage charge identifies the car, start/end times, free-time expiry, responsible cause, custody source and charging entity. Third-party carrier charges require the actual supporting invoice and the governing carrier rule. The same dwell cost cannot be recovered both as the \$50 occupancy charge and a duplicate carrier pass-through. Disputed costs remain identified rather than spread as unexplained intercompany overhead. Provider fault is borne by the responsible provider; customer delay is assigned only on evidence. Shared causes receive a documented allocation, not automatic full billing to the mine.

A provider-caused missed shipment suspends the affected unearned service charge and requires an agreed cure or alternate qualified service. The responsible provider bears reasonable documented incremental replacement cost attributable to its breach, without double recovery. Routine disputes go first to Derek Fenwick/Marta Ellery and the mine receiving lead, then Nora and Mari within five business days. Unresolved commercial disputes proceed through the contract's internal independent review before ordinary legal remedies. A pending dispute never overrides Seth's rail command or Mari/Cole's operating hold.

Schedule C — custody, insurance and qualification

Required event records identify interchange receipt, BS&T dispatch, Taylor spot, unload start, weight/transfer, truck dispatch, mine receipt, empty inspection and empty release. Each retains source time, timezone, operator identity, car/truck/load identifier, weight, seal status where applicable and corrections. An outage uses a signed offline queue and later synchronization preserving both original and corrected timestamps. Reconstructed evidence does not silently replace the original record.

The synthetic ordinary-inbound qualification schedule, effective July 7, records assigned trained handlers, immobilization/transfer procedures, compatible equipment, containment and emergency contacts, approved truck payloads/routes, receiving readiness and stop authority. Internal coverage assumptions are commercial general liability **\$2M each occurrence**, motor liability **\$2M combined single limit**, and pollution liability **\$2M**, with railway protective/contractual coverage reviewed for the specific property. These are derived case contract limits, not universal legal minima, observed insurer quotations or government approvals. The incremental \$8,000 insurance budget is a planning allocation within the existing program, not proof that a new stand-alone policy can be bought for that sum. No insurer, policy number or certificate is fabricated.

Each provider bears its own employee, equipment and negligent-performance obligations; RWH bears receiving readiness, customer-directed delay and accurate tender information. Indemnity follows the responsible party's negligent or wrongful conduct and actual supported loss. There is no blanket transfer of mine environmental liabilities, railway legacy claims or ARU acquisition indemnities into this service contract. Fraud, bodily injury, pollution and deliberate safety breaches are not extinguished by a routine service-credit calculation.

Direct uranium-product custody remains **OPEN_GATED**. It requires a separate agreement and evidence of applicable regulatory, route, packaging, customer, equipment, security, insurance, training, emergency and operating qualification. Ordinary acid service is not precedent establishing uranium authority.

Schedule D — assets, billing and termination

RWH owns the **\$3.25M** mine receiving/road/storage program. ARU owns **\$5.25M** of reusable Taylor infrastructure. The **\$8.5M** Phase 1 is separately equity funded; depreciation stays with each owner. The unapproved \$6.5M balance of the \$15M ceiling is excluded. ARU's separate \$11M catch-up and \$3.3M sustaining capital are not service consideration or duplicate tariff charges.

Monthly invoices separately identify BS&T rail, ARU terminal and ARU trucking service, actual quantities, source events, accepted rate version and exclusions. Payment is due within 30 calendar days; the model's following-calendar-month settlement may include early payment rather than implying an exact settlement day. December balances remain due in January 2027. Reciprocal seller receivable/revenue and RWH payable/expense share stable invoice IDs. Consolidation eliminates those balances and income/expense once; external costs and capital consumption remain.

A material breach has 30 days to cure after written notice where cure is possible; unsafe or unqualified service may be stopped immediately. Persistent failure, insolvency, loss of essential qualification or uncured material breach permits termination of the affected service. Either party may terminate for convenience after the initial year on 180 days' notice, without a volume penalty or acceleration of unspent capital. Existing supported invoices and accrued cause-assigned charges survive. Each owner retains its assets; termination creates no automatic mine subsidy, purchase option or recovery of every unamortized dollar from the other party.

References: [service plan](#), [rate/capital memorandum](#), [labor/safety controls](#), [finance source and authority matrix](#). The cited operating memorandum supplies official external regulatory context; the contract supplies separately labeled fictional commercial terms.